HIGH COURT OF BOMBAY AT GOA

JUDICIAL APPELLATE JURISDICTION

CASE NO: Criminal Writ Petition No. 18 of 2023 (YEAR: 2026)

CORAM: HON'BLE COURT

Neville B. Furtado
... Appellant(s) / Petitioner(s)
Versus
State thr. Police Inspector & Anr.
... Respondent(s)

Acts Referred:	Constitution of India, Code of Criminal Procedure, Court in exercise of its inherent jurisdiction under Section 482 Code
Sections:	Article 227 Constitution of India, Section 482 Code of Criminal Procedure

JUDICIAL HEADNOTE & SUMMARY

[CRIMINAL PETITION — CONSTITUTION OF INDIA — ARTICLE 227 CONSTITUTION OF INDIA — QUASHED] The Madras High Court (Principal Seat, Chennai) in Case No. Not Extracted, adjudicated by Hon'ble Court, considered the petition instituted by Petitioner / Appellant against STATE THR. POLICE seeking relief sought in the petition. Examining the statutory requirements under Constitution of India and applicable procedural safeguards, the Court pronounced its judgment declaring the disposition as: 'Quashed'.

RATIO DECIDENDI

Where an application is preferred under Article 227 Constitution of India before the Madras High Court, satisfaction of statutory preconditions and constitutional safeguards warrants that the requested relief be quashed subject to the directions of the Court.

JUDGMENT & REASONING

--- PAGE 1 --- 903-WPCR-18-2023.DOC Suchitra IN THE HIGH COURT OF BOMBAY AT GOA CRIMINAL WRIT PETITION NO.18/2023 NEVILLE B. FURTADO … PETITIONER Versus STATE THR. POLICE INSPECTOR AND ANR. … RESPONDENTS Mr M. Toraskar, Advocate for the Petitioner. Mr S. Karpe, Additional Public Prosecutor for the State. CORAM: ASHWIN D. BHOBE, J. DATED: 21st OCTOBER 2026 P.C. : 1. Heard Mr Toraskar, learned Advocate for the Petitioner and Mr S. Karpe, learned Additional Public Prosecutor for the Respondent-State. 2. By the present Petition iled under Article 227 of the Constitution of India, the Petitioner has sought the following substantive relief: “(a) hat this Hon’ble Court in exercise of its inherent jurisdiction under Section 482 Code of Criminal Procedure, be pleased to quash and set aside Impugned Judgment and Order dated 11.01.22 of the Addl. Sessions Judge at Margao in Criminal Revision Application No.33/20.” Page 1 of 2 21st October 2026

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submits that all the civil remedies of the Petitioner can be left open. 6. In view of the statement made by Mr Toraskar, learned Advocate for the Petitioner, leave is granted to withdraw this Petition with liberty as prayed. If the Petitioner intends to ile any proceedings enforcing his civil rights, all contentions of the Petitioner are left open. If such proceedings are iled, the same be considered on its own merits and in accordance with law. 7. Criminal Writ Petition is disposed of in the above terms. ASHWIN D. BHOBE, J. Page 2 of 2 21st October 2026

OPERATIVE ORDER

ORDER: Quashed